

Court No. - 40

Case :- WRIT - C No. - 34842 of 2023

Petitioner :- M/S Nufarm Frozens Pvt Ltd And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pranesh Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Pranesh Kumar Mishra, learned counsel for the petitioners, Sri Devesh Vikram, learned Additional Chief Standing Counsel for the State-respondents and Sri Pranjal Mehrotra, learned counsel for the respondent Nos.2 and 3.

2. This writ petition has been preferred inter alia praying for the following relief:

"a) issue a writ, order or direction in the nature of mandamus commanding and directing the respondent No.2 and 3 to revise the electricity bill of the petitioner's firm for the period from the month of 04/2017 to 05/2023 in respect of his industrial connection/Account No. 712100371928 in the category of HV-2 which was issued by the respondents in wrong Supply Type ST/HV 21T (Urban Tariff Rate) instead of correct Supply Type ST/HV 26T (Rural Tariff Rate).

b) issue a writ, order or direction in the nature of mandamus commanding and directing the respondent No.2 and 3 to return the excess amount to the petitioner in respect of his electricity bill alongwith 18% interest after revising it which was issued by the respondents in wrong Supply Type ST/HV 21T in place of correct Supply Type ST/HV 26T for the period from 04/2017 to 05/2023 in respect of the connection of the petitioner's firm or adjust the same in future electricity bill of the petitioner's firm and also direct the respondents to provide the interest of 4.5% to the petitioner on his secured deposited amount alongwith interest for the period from 04/2017 to 12/2021 in respect of the electricity connection of the firm of the petitioner has not been given by the respondents till date,

c) issue a writ, order or direction in the nature of mandamus commanding and directing the respondents to decide the representation of the petitioner dated 01.07.2023."

3. Sri Pranjal Mehrotra, learned counsel for the respondent Nos.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioners and with consent of learned counsels for the parties, **this writ petition is disposed off** giving liberty to the petitioners to submit their objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.3, within ten days from today along with a certified copy of this order. In case such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, after affording reasonable opportunity of hearing to the petitioners.

Order Date :- 24.11.2023/NLY